

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Mills	Team: Team # 3	CCRB Case #: 201409352	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/10/2014 1:02 PM	Location of Incident: Manhattan Beach	18 Mo. SOL 3/10/2016	Precinct: 61		
Date/Time CV Reported Wed, 09/10/2014 3:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/10/2014 3:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Idris Ademola	25467	946436	061 PCT
2. POF Lauren Au	10083	947893	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Lauren Au	Abuse: PO Lauren Au stopped § 87(2)(b)	A . Unsubstantiated
B . POM Idris Ademola	Abuse: PO Idris Ademola stopped § 87(2)(b)	B . Unsubstantiated
C . POF Lauren Au	Abuse: PO Lauren Au searched § 87(2)(b)	C . Unsubstantiated
D . POM Idris Ademola	Abuse: PO Idris Ademola threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . POM Idris Ademola	Abuse: PO Idris Ademola refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated
F . POM Idris Ademola	Discourtesy: PO Idris Ademola spoke rudely to § 87(2)(b)	F . Unsubstantiated
G . POM Idris Ademola	Abuse: PO Idris Ademola searched § 87(2)(b)	G . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB, via the CCRB online website, on September 10, 2014. (Encl. 5a-6b)

At approximately 11:30 a.m. on September 10, 2014, § 87(2)(b) sat on a bench on the Manhattan Beach pier near the Kingsborough College parking lot in Brooklyn, facing out towards the beach and using his phone, but not smoking anything. At approximately 1 p.m., two officers, PO Idris Ademola and PO Lauren Au of the 61st Precinct, who had been parked in a marked vehicle approximately a mile away, drove up to him, got out of their vehicle, and told him that they smelled marijuana and asked several times if he was smoking marijuana (**Allegations A and B**). § 87(2)(b) believed he had been profiled. After he denied doing so and emptied his pockets of his own accord, PO Au stated that he must have eaten the evidence. She took his schoolbag, which was beside him, and opened it, unzipping side pockets and removing his schoolbooks and papers (**Allegation C**). After stating that she had found marijuana in the bag, PO Au placed “significantly small” scraps of alleged marijuana in a tube.

The officers then went to their vehicle and ran a warrant check. § 87(2)(b) approached the vehicle on PO Au’s side, and asked for “a” name and a shield number. Though PO Au provided her name and shield number later, PO Ademola got out of the vehicle angrily and told § 87(2)(b) “we’re taking you in” (**Allegation D**). § 87(2)(b) asked why and PO Ademola said “you asked for my name and shield,” though he never provided his name or shield number to § 87(2)(b) (**Allegation E**). He also stated, “sit the fuck down,” and “just fucking listen” (**Allegation F**). PO Ademola and PO Au then searched through his bag a second time (**within Allegation C and Allegation G**), removing the glasses case, which they kept. § 87(2)(b) was never provided with a property voucher. The officers then discussed whether to arrest him or to issue a summons to him, and then issued a summons to him for unlawful possession of marijuana. (Encl. 13a-13c)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

Mediation was not offered to § 87(2)(b) as an alternative to resolve his complaint,

§ 87(2)(b).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) has not filed any other complaints with the CCRB. (Encl 4)

PO Ademola has been a member of the service for six years and PO Au has been a member of the service for five years, and they have no substantiated CCRB complaints against them, though CCRB complaint number 201201772, which was filed against PO Au, also contained a summons dispute. (Encl. 2-3)

Findings and Recommendations

Explanation of Subject Officer Identification

Officers Au and Ademola confirmed their interaction with § 87(2)(b)

Allegation A – Abuse of Authority: PO Lauren Au stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Idris Ademola stopped § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that he was seated on a bench, using his phone and not smoking anything, when the officers stopped him and asked if he was smoking marijuana, saying that they smelled marijuana. He believed the officers could not have smelled marijuana and had profiled him. Both officers confirmed that they asked § 87(2)(b) about marijuana after approaching him, but PO Ademola contended that the officers saw him from ten to fifteen feet away, rolling a marijuana cigarette, while PO Au contended that the officers saw him from twenty to thirty feet away, smoking the cigarette. Both officers contended that § 87(2)(b) swallowed the cigarette. Though she did not provide it as a reason for the stop, PO Au mentioned an odor of marijuana as a reason for a later search of § 87(2)(b)'s bag, while PO Ademola did not mention an odor of marijuana. § 87(2)(b)'s summons is for possession of marijuana in a glasses case and the description section of the summons does not mention smoking or rolling a marijuana cigarette.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO Lauren Au searched § 87(2)(b)

It is undisputed that PO Au searched § 87(2)(b)'s bag. § 87(2)(g)

§ 87(2)(b) alleged that when he denied possessing marijuana and voluntarily emptied his pockets, PO Au picked up his schoolbag and searched it without his consent. He added that the officers stated that they needed to voucher something as evidence, and PO Au searched the bag a second time. PO Ademola contended that he told § 87(2)(b) that he could be arrested for tampering with evidence for swallowing marijuana, and according to PO Ademola, § 87(2)(b) then admitted that he had gotten marijuana from a glasses case in his bag, which PO Au retrieved. PO Ademola did not mention the odor marijuana and did not recall PO Au searching additional parts of the bag. PO Au contended that she told § 87(2)(b) she could smell marijuana, and he then told her that there was more in his bag, then pointed to the pocket where the glasses case was located. PO Au contended that she only searched that part of the bag, and never unzipped side pockets or removed schoolbooks. Both officers contended that the bag was only searched once. PO Ademola described § 87(2)(b) as having an aggressive demeanor, while PO Au stated that § 87(2)(b) was crying.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED], it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: PO Idris Ademola threatened to arrest § 87(2)(b)

It is undisputed that PO Ademola threatened to arrest § 87(2)(b) § 87(2)(g). § 87(2)(b) stated that the officers discussed between themselves whether to arrest him for marijuana possession, and that PO Ademola told him “we’re taking you in” when he requested the officers’ shield numbers. PO Ademola stated that in order to compel § 87(2)(b) s cooperation in finding marijuana; he told § 87(2)(b) that he could be arrested for tampering with evidence, since the officers saw him from ten to fifteen feet away, rolling a marijuana cigarette, which he then swallowed. PO Au contended that the officers saw him from twenty to thirty feet away, smoking a marijuana cigarette which he then swallowed.

New York State Penal Law section 221.05 states that unlawful possession of marijuana is punishable only by a fine. Criminal Procedure Law section 215.40 states that a person is guilty of tampering with physical evidence when he believes that a certain item of physical evidence is about to be produced in an official proceeding and then suppresses that evidence by an act of concealment, alteration, or destruction. Penal Law section 221.10 states that a person is guilty of criminal possession of marihuana in the fifth degree when marijuana is open to public view in a public place. (Encl. 1a-1c)

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: PO Idris Ademola refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g) § 87(2)(b) alleged that he approached the officers’ vehicle, on PO Au’s side, and requested “a” name and a shield number, and that though PO Au later provided her information, PO Ademola exited his vehicle and threatened to arrest him, stating “you asked for my name and shield number.” PO Au contended that § 87(2)(b) requested her shield number specifically, and that he provided it, pointing at her shield. PO Ademola contended that § 87(2)(b) requested their shield numbers and that they told him they would provide their information when they were done writing the summons, and that when the issued the summons, they both provided their

information. Both officers denied that PO Ademola used profanity or threatened to arrest § 87(2)(b) for requesting their information.

§ 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Discourtesy: PO Idris Ademola spoke rudely to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) stated PO Ademola told him to “sit the fuck down” and “just fucking listen.” The officers contended that no profanity was used and that they both verbally provided their names and shield numbers when asked. Both officers also noted that they had not wanted to do anything bad to § 87(2)(b) because a search for his criminal history indicated that he was not a bad guy. PO Au added that she felt bad for § 87(2)(b) because he was scared and crying, though PO Ademola contended that § 87(2)(b) spoke aggressively and acted as though he had done nothing wrong. § 87(2)(g)
Therefore, it is recommended that **Allegations F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: PO Idris Ademola searched § 87(2)(b)

§ 87(2)(g) . § 87(2)(b) stated that PO Ademola assisted PO Au in searching his bag for something to voucher the second time it was searched. Both officers contended that the bag was only searched once, by PO Au. § 87(2)(g)
Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

Team:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date